

113	Lancab, Inc. vs. Fuller, 25-01481178	Plaintiff, Lancab, Inc. ("Plaintiff"), moves for an order striking the memorandum of costs in its entirety. Plaintiff contends that Memorandum of Costs filed by Defendants, Keven Fuller and Defendant TechPro Services US (collectively, "Defendants") should be stricken as they were not served within the mandatory time limits of California Rules of Court, rule 3.1700(a)(1). No opposition has been filed. <i>Timeliness of Motion to Strike</i> Any notice of motion to strike or to tax costs must be served and filed 15 days after service of the cost memorandum, and is extended as provided in Code of Civil Procedure section 1013 (five days for mail), and in Code of Civil Procedure section 1010.6(a)(3) (two court days for electronic service). (California Rules of Court, Rule 3.1700(b)(1).) Here, Defendants served their respective Memorandum of Costs on Plaintiff on February 19, 2026, by email. (Declaration of Travis F. Chance, ¶ 9, Ex. 2.) The deadline to file the instant motion to strike was therefore March 10, 2026 (15 days + 2 court days). As this instant motion was filed and served on March 9, 2026, it was timely served and filed. <i>Timeliness of Memorandum of Costs</i> "A party's right to recover costs is governed entirely by statute. [Citation.]" (<i>Boonyarit v. Payless Shoesource, Inc.</i> (2006) 145 Cal.App.4th 1188, 1192.) "To obtain costs, a party must comply with the applicable rules of court. [Citation.]" (<i>Ibid.</i>) "Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." (Code Civ. Proc. § 1032(b).) Prejudgment costs must be claimed and contested in accordance with the rules adopted by the Judicial Council. (Code Civ. Proc., § 1034(a); see also CJER, Cal. Judges Benchbook Civ. Proc. Trial § 16.11.) "A party that requests dismissal of an action must serve on all parties and file notice of entry of the dismissal." (California Rules of Court, rule 3.1390.)
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“A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first.” (California Rules of Court, rule 3.1700(a)(1).)

“[I]f a claimant fails to present a cost bill, a waiver of the right to costs results. The time provisions relating to the filing of a memorandum of costs, while not jurisdictional, are mandatory. [Citation.]” (*Hydratec, Inc. v. Sun Valley 260 Orchard & Vineyard Co.* (1990) 223 Cal.App.3d 924, 929; see also *Kaufman v. Diskeeper Corp.* (2014) 229 Cal.App.4th 1, 6, fn. 2 [“We agree with the trial court that Diskeeper was required to file a memorandum of costs in order to recover the other costs and expenses it sought, and that Diskeeper’s failure to do so worked a forfeiture regarding them”].)

“The party claiming costs and the party contesting costs may agree to extend the time for serving and filing the cost memorandum and a motion to strike or tax costs. This agreement must be confirmed in writing, specify the extended date for service, and be filed with the clerk. In the absence of an agreement, the court may extend the times for serving and filing the cost memorandum or the notice of motion to strike or tax costs for a period not to exceed 30 days.” (California Rules of Court, rule 3.1700(b)(3).) The trial court has discretionary power to grant relief under Code of Civil Procedure section 473(b) upon a proper showing of mistake, inadvertence, surprise or excusable neglect. (*Jones v. John Crane, Inc.* (2005) 132 Cal.App.4th 990, 1012; *Russell v. Trans Pacific Group* (1993) 19 Cal.App.4th 1717, 1728-1729.)

Here, on January 16, 2026, Plaintiff filed a request for dismissal, without prejudice, as to the Complaint and the entire action of all parties and all causes of action, which was entered that same day. (Declaration of Travel F. Chance, ¶¶ 6-7; ROA 153.) On January 23, 2026, Plaintiff served a notice of entry of dismissal by electronic service. (Id., ¶ 8, Ex. 1; ROA 158.)

		Therefore, Defendants were required to file and serve any memorandum of costs no later than February 11, 2026 (15 days + 2 court days for electronic service). However, Defendants did not serve their respective Memorandum of Costs until February 19, 2026. (Chance Decl., ¶ 9, Ex. 2.) And, Defendants did not file their respective Memorandum of Costs until February 18, 2026. (ROA 160, 162.) Defendants have not filed an opposition or presented any basis or justification to extend the time for serving and file the Memorandum of Costs. (Jones v. John Crane, Inc. (2005) 132 Cal.App.4th 990, 1012 [“While the court had discretion to excuse the untimeliness, it did not abuse its discretion in failing to do so in light of plaintiffs’ failure to offer an ‘explanation ... for this neglect’”].) Under these circumstances, the Court GRANTS Plaintiff’s motion to strike the Memorandum of Costs filed by Defendants. <i>Plaintiff to give notice.</i>
114	Nguyen vs. Roth Staffing Companies, L.P., 20-01143300	Defendants Roth Staffing Companies, L.P. dba Ultimate Staffing Services, Roth Companies, Inc. (“Roth Defendants”), hereby file this Petition to Confirm the Arbitration Award (“Petition”) issued by the Honorable Rex Heeseman (Ret.) on March 14, 2025. The Roth Defendants pray as follows: 1. That the Court confirm the Arbitration Award issued by the Honorable Rex Heeseman (Ret.) on March 14, 2025; and 2. That the Court direct the Clerk to enter judgment in conformity with the Arbitration Award and dismiss the action as to the Roth Defendants only, with prejudice. Initially, the Roth Defendants cite to 9 U.S.C § 13 as the enabling authority for the requested relief. However, the CAA applies to this Petition, and not the FAA. [... “the United States Supreme Court does not read the FAA’s procedural provisions to apply to state court proceedings.” <i>Cable Connection, Inc. v. DIRECTV, Inc.</i> (2008) 44 Cal.4th 1334, 1351.] To that end, Code Civ. Proc., § 1286 provides, “If a petition or response under this chapter is duly served and filed, the court shall confirm the award as made, whether rendered in this state or another state, unless in accordance with